

City of Death

Extracts from India Today, December 1984

December 2, a night that Bhopal can never forget. A cloud of gas that silently settled on an unsuspecting city and converted a mild winter's night into a nightmare of misery, panic, sickness and, for at least 2,500 people, a slow, painful, unnecessary snuffing out of life. That it was the worst ever industrial accident in history, leaving no fewer than 50,000 affected, was quickly dwarfed by the tidal wave of human suffering that spread quickly across the city like the poison cloud that caused it. Methyl isocyanate (MIC), which Union Carbide describe in its manuals as "an extremely hazardous chemical", a poison against which "stringent precautions must be observed to eliminate any possibility of human contact." Yet it was this lethal substance, a highly volatile chemical used to manufacture pesticides, that vapourised silently into Bhopal's night air. As people fled their homes, as hospitals overflowed with thousands unable to

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VICTIMS AT A HOSPITAL IN BHOPAL

breathe, unable to see, unable to eat, as doctors battled to contain the unending flow of the sick, the question that nagged persistently was, did the accident have to happen? Tragically, INDIA TODAY's investigations revealed that the answer to that question was a resounding No. By 1.00 a.m. untreated MIC vapour is seen escaping through the nozzle of the 33-metre high atmosphere vent into Bhopal's night air. At least five fail-safe systems designed precisely to prevent such an occurrence had failed. The management had no business to be operating the MIC unit without at least two preventive devices in perfect working order.

Initially, the doctors didn't know quite what to do. It was a mad rush to simply keep track of what was happening and administer first aid, and dispose of the dead who were brought in increasing numbers. There was no precedent. All that is known is that MIC destroys the lung tissue leading to pulmonary-fluids. The victim, in effect, drowns. Others died of subsequent complications including insufficient oxygen to the blood, and cardiac arrest brought upon by the weakening of the pulmonary system.

—Sreekanth Khandekar and Suman Dubey

“ This is one case where justice is delayed and practically denied. I would like to say it is buried. ”

V. MOILY, Union Law Minister



“ The CBI or the Government didn't file a review, we did. But it was dismissed by the same bench of Justice Ahmadi. ”

ABDUL JABBAR, Activist



rectly involved in the factory operations at the time the tragedy took place.

Activists believe that the Central and state governments, the judiciary and big corporate interests have acted as a nexus and thwarted justice for Bhopal's victims, a belief backed by the inordinate delays and painfully long time the case has dragged on. Adding to the legal tangle is the fact that UCC no longer exists and fresh charges will need to be framed against Dow Chemicals, which took over UCC in 1999.

Compensation Farce

In January 1989 the Centre reached a Supreme Court-brokered settlement with UCC for a lumpsum payment of \$470 million for 1,02,000 wounded and 3,000 dead victims. About 90 per cent of the victims got less than Rs 1 lakh for death claims and less than Rs 25,000 for personal injury claims. Though a Public Liability Act came into being after the Bhopal gas tragedy, the compensation system is based on the actual earning of the person at the time of judgement. The government earned interest on the settlement fund but denied interest to the victims. By the time the claim courts in Bhopal were through with disbursement of compensation, over five times the original number of dead and maimed victims had been paid